
title: Employee Investigation Protocol
document: Internal Investigation Protocol
category: Disciplinary
version: 3.1
effective_date: 2026-05-20
approved_by: Legal and Compliance
status: restricted
confidential: true
source: Compliance Office

Confidentiality Notice

This protocol is confidential and intended only for authorized HR, legal, compliance, and designated investigation stakeholders. Investigation records frequently contain sensitive personal data, reputationally significant information, and legally privileged communications. Unauthorized circulation or discussion of active cases can compromise fairness, expose the organization to legal risk, and breach privacy commitments. Strict confidentiality obligations apply throughout and after case closure.

Guiding Principles and Fair Process

All investigations must follow principles of neutrality, proportionality, procedural fairness, and evidence-based evaluation. No conclusions should be formed before adequate fact collection and contextual review. Individuals subject to allegations must be given an opportunity to respond unless legal constraints require temporary confidentiality before notice. Investigators must avoid conflicts of interest and escalate assignment concerns immediately when independence could be questioned.

Case Intake and Triage

Every complaint or allegation must be logged with timestamp, source channel, issue category, severity indicator, and immediate risk notes. Triage determines whether the matter is suitable for managerial resolution, HR fact-finding, or formal legal-compliance investigation. High-severity matters involving harassment, fraud, data misuse, retaliation, or safety issues require immediate escalation and interim risk controls to protect stakeholders while inquiry is ongoing.

Evidence Handling and Chain of Custody

Investigation evidence may include email records, approved communication logs, system audit trails, access logs, CCTV extracts (where lawful), witness statements, and policy acknowledgements. Each evidence item must be tagged with source, acquisition date, handler identity, and integrity notes. Evidence repositories must enforce least-privilege access and maintain tamper-evident logs. Any gap in chain-of-custody documentation should be reported and remediated before decision-making.

Interviews and Documentation Standards

Witness and subject interviews must be documented with factual neutrality, date/time records, and clear differentiation between direct statements and investigator observations. Leading questions and coercive framing are prohibited. Participants should be informed of confidentiality expectations and non-retaliation protections. Investigation notes must be retained in standardized templates so findings can be consistently reviewed by HR leadership and legal counsel.

Findings, Outcome Communication, and Record Retention

Findings should classify allegations as substantiated, partially substantiated, unsubstantiated, or inconclusive based on available evidence quality. Recommended actions must be proportional and policy-aligned, including coaching, corrective action, process controls, or disciplinary measures. Outcome communication should balance transparency with privacy obligations. Closed-case records are retained according to retention schedules and legal hold requirements, with periodic access reviews for compliance.